

Justification for an Exception to Fair Opportunity or to Use Brand-Name Restriction

Is this a brand-name justification? ☐ Yes ☒ No

Is this a Bridge Action as defined in the AF Bridge Action Reduction Plan? ☒ Yes ☐ No

Contracting Activity: AFLCMC/HBUK Hanscom AFB

Purchase Request / Local ID Number:

Program Name (and Program Element, if applicable): Counter - small Unmanned Aerial Systems (C-sUAS)

Estimated Cost/Price of the Order (including options): [REDACTED]

Type Program (see DAFFARS 5302.101 for definitions): ☒ PEO Program ☐ Operational ☐ Enterprise

Type of Determination: ☒ Individual ☐ Class Expires:

Fair Opportunity Exception: FAR 16.505(b)(2)(i) (Check the applicable subparagraph below.)

☐ (A) ☐ (B) ☒ (C) ☐ (D) ☐ (E) ☐ (F) ☐ (G) Check this box to display the FAR 6.302 exceptions.

[Click here for instructions to complete the boxes below.](#)

(1) Contracting Activity:

Air Force Life Cycle Management Center
Force Protection Division/HBUK
3 Eglin St. Bldg 1618
Hanscom AFB, MA 01730

(2) Nature and/or description of the action being approved:

The intent of this Fair Opportunity Exception is to award a modification to the existing C-sUAS Support and Sustainment (S&S) contract #FA8730-21-F-0050 with SAIC Inc. The C-sUAS S&S contract was competitively awarded via the GSA OASIS Pool 3 IDIQ on 26 May 2021 with a base period and three (3) option years. The period of performance (PoP) of the current contract ends [REDACTED]

The modification will add two (2) additional option periods to a mix of Cost Reimbursable, Cost Plus Fixed Fee, Time and Material, and Firm Fixed Price CLINs. The additional options will consist of [REDACTED]

The Services Extension Clause would be proposed at a monthly cost.

(3) Description of the supplies/services required to meet the agency's needs:

The supplies and performance based services being extended with this contract action consist of C-sUAS equipment spares, OEM Support, travel and ODC, fly-out support, and on site Field Service Engineer (FSE) support.

The Air Force Life Cycle Management Center, Force Protection Division (AFLCMC/HBU) supports the United States Air Force (USAF) Security Forces (SF) by acquiring, deploying, supporting and sustaining Air Base Air Defense (ABAD) capabilities. Included as part of these ABAD capabilities is Counter-small (Group 1 & 2) Unmanned Aircraft Systems (C-sUAS). C-sUAS is a Systems Of Systems (SOS) design comprised of Commercial Off The Shelf (COTS) and Government Off The Shelf (GOTS) sub-systems which have one or more physical components. Collectively the combination of these sub-systems provide the capability to Detect, Identify, Track and Defeat sUAS. The scope of this effort entails a wide range of maintenance and sustainment tasks necessary to maintain operational availability of fielded C-sUAS equipment. Tasks include, but are not limited

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to, repairs of OEM equipment, purchasing spares from OEMs, training on OEM equipment, providing C-sUAS training, warehousing, help desk, site IT maintenance etc.

The total cost of this contract extension is estimated to be [REDACTED] which will increase the existing contract ceiling from [REDACTED]

This cost is representative of [REDACTED]. If all [REDACTED]

The total period of performance of this extension will be from [REDACTED].

The following CLINs will be extended:

- 4001 OEM Repairs and Spares (Cost Reimbursable)
- 4002 OEM Technical Support (Cost Plus Fixed Fee)
- 4003 Flyout Support (Cost Reimbursable)
- 4004 Travel and ODC (Cost Reimbursable)
- 4005 Data (Not Separately Priced)
- 4006 GSA Oasis Contract Access Fee (Cost Reimbursable)
- 4007 Contractor Logistics Support (Firm Fixed Price)
- 4008 Training (Cost Plus Fixed Fee)
- 4009 Organizational Support CENTCOM (Firm Fixed Price)
- 4010 Organizational Support STRATCOM CONUS (Firm Fixed Price)
- 4011 Organizational Support PACAF (Firm Fixed Price)
- 4012 Organizational Support US Space Force (Firm Fixed Price)
- 4014 HBUC Support Activities (Time & Materials)

- 5001 OEM Repairs and Spares (Cost Reimbursable)
- 5002 OEM Technical Support (Cost Plus Fixed Fee)
- 5003 Flyout Support (Cost Reimbursable)
- 5004 Travel and ODC (Cost Reimbursable)
- 5005 Data (Not Separately Priced)
- 5006 GSA Oasis Contract Access Fee (Cost Reimbursable)
- 5007 Contractor Logistics Support (Firm Fixed Price)
- 5008 Training (Cost Plus Fixed Fee)
- 5009 Organizational Support CENTCOM (Firm Fixed Price)
- 5010 Organizational Support STRATCOM CONUS (Firm Fixed Price)
- 5011 Organizational Support PACAF (Firm Fixed Price)
- 5012 Organizational Support US Space Force (Firm Fixed Price)
- 5014 HBUC Support Activities (Time & Materials)

This contract action will be funded utilizing 3400 O&M funding in FY2025 and FY2026 as shown in the accompanying cost estimate.

(4) Identification of the exception to fair opportunity and the supporting rationale:

The rationale supporting this exception is in compliance with FAR Part 16 Section 505(b)(2)(i)(c) "The order must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order."

The current Support and Sustainment contract that is being extended with the approval of this FOE was competitively awarded utilizing the GSA OASIS IDIQ Pool 3 contract vehicle on 26 May 2021. The Market Research for the original award included an initial RFI sent to the restricted and unrestricted Pool 3 companies on 18 November 2019 that received 10 responses. Of the 10 interested companies, eight (8) were large businesses and two (2) were small business. An additional RFI was released to all pool 3 companies (restricted & unrestricted) on 27 March 2020. This RFI again provided a high level summary of the anticipated requirements. Furthermore, this RFI provided notice that the HBUC team intended to release a draft requirements document

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and hold an Industry Day. The RFI requested an electronic response to indicate continued interest on the C-sUAS effort. This request yielded 11 responses, which included nine large businesses and two new small businesses. Of the 11 responses, five companies were of the original ten (10) companies that expressed interest. The five companies that did not express continued interest, consisted of three large businesses and two small businesses.

A white paper was then requested as a prerequisite to continue with the solicitation. 5 of the 10 interested parties decided to continue and submitted white papers for government evaluation. An RFP was then released [REDACTED]

Based on responses from the White Paper, a small business set aside did not meet the needs of the Government, as only one small business responded. A full and open competition on GSA OASIS Unrestricted Pool 3 was deemed in the Government's best interests.

The Air Force is re-evaluating the C-sUAS mission and its acquisition strategy. The Air Force is currently solidifying the C-sUAS way ahead based on the results of the Oct 2023-May 2024 VCSAF FY26 POM Air Force investment review. [REDACTED]

[REDACTED] Extending the current Support and Sustainment contract [REDACTED] will allow the program office to focus on the new strategy, eliminate mission continuity disruption, and in support of this justification create a significant savings of duplicative costs that would not be recovered through competition. [REDACTED]

Award to any other source would result in substantial additional cost, estimated to be [REDACTED] in Capability Stand-up costs, to the Government that is not expected to be recovered through competition.

The transition to a new contractor will require an additional "Capability Stand-up" period that will overlap with the current contract while the inventory and capabilities are transferred to the new contractor. With the program office still waiting for final direction from the Air Force Investment review it would not be in the Air Force's best interest economically to re-compete the current contract immediately when it would then have to be re-competed again to meet the needs of the Self-procure/Storefront strategy, once finalized. Accordingly, [REDACTED] is the only firm capable of providing the supplies and services described in Section III above without the U.S. Air Force experiencing substantial economic impact. The Air Force does not currently have the ability to perform these functions organically but is currently working through the DSOR process with Tobyhanna Army Depot (currently unfunded) that may allow some, but not all, of the equipment to transfer to organic sustainment. If funded, this transition would likely start early in FY25 followed by an aggressive 6-8 months to transition all the equipment. However, this will not include other contract functions such as spare purchasing and warehousing.

If a loss of Support and Sustainment services is experienced, the Warfighter will encounter unacceptable loss of C-sUAS readiness and defense capabilities which could lead to a significant threat to both Air Force assets and personnel. This loss of service would be the result of a delayed release of the follow-on contract RFP while HBUC awaits updated strategy and requirements from Lead Command.

No new or significant Market Research was conducted for this extension effort. All the legacy equipment that is being supported on this contract is either approaching end of life or multiple versions behind the current offerings; the only sensible option is to continue with the current access to the OEMs until organic sustainment can be finalized. The program office does not find it financially practical or feasible to have a new prime contractor setup the multitude of required subcontract agreements and relationships for such a short amount of time. The planned Self-procure/Storefront contract following this extension will be competitively awarded and include extensive Market Research as required under FAR 16.505(b)(1) and DFARS 216.505-70.

(5) Contracting Officer's determination that the anticipated cost to the Government will be fair and reasonable:

Fair and reasonable pricing for this additional period [REDACTED] will be based on pricing associated with the current

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Support & Sustainment contract. All items on this contract are commercially available and are purchased on the open market at current market prices. Prices are determined reasonable by performing comparisons of prices within the current market prices. The government is not obligated to purchase solely from SAIC for any item the government determines not to be fair and reasonable. Additionally, the Government will require certified cost and pricing data and require the contractor to submit in accordance with table 15-2. We will perform price analysis to look at the overall price and compare it to current costs incurred, and additionally compare it to the Governments IGCE. The Government also will perform a cost analysis that evaluates the Contractors proposed cost elements, a technical analysis, and a profit/fee analysis. This combined with a price analysis, will assist in determining a fair and reasonable price determination.

(6) Other facts supporting the justification:

The C-sUAS mission is becoming increasingly important as the world threats evolve towards more "drone" warfare. Accordingly, it is important to avoid continuity disruptions to the support services currently in place. As the Air Force cannot direct specific people to be hired into the FSE positions it is likely that some of the existing personnel will be replaced if a new contractor takes over the effort. It is not beneficial to the C-sUAS mission to potentially replace some or all of the on site Field Service Engineers even once, so potential impact to this critical service twice in a 1-year period would be exceptionally detrimental to the C-sUAS mission.

(7) Actions the agency may take to remove or overcome any barriers to increasing fair opportunity before any subsequent acquisition for the supplies or services:

The C-sUAS Program Office is currently in the early stages of planning for a competitively awarded Self-procure/Storefront based contract as a follow on to the extension requested as part of this Fair Opportunity Exception. This new competition will include appropriate market research. The new Self-procure/Storefront competition will ensure all interested and capable parties are able to compete for the effort.

(8) Program Manager's certification that supporting data is accurate and complete:

As evidenced by my signature below, I certify that any supporting data contained herein, which is my responsibility, is both accurate and complete.

(9) Contracting Officer's certification that the justification is accurate and complete:

As evidenced by my signature below, I certify that the justification is accurate and complete to the best of my knowledge and belief.

(10) Approving Official's determination that one of the circumstances in [FAR 16.505\(b\)\(2\)\(i\)](#) applies to the order.

As evidenced by my signature below, I hereby determine that the fair opportunity exception checked on page 1 applies.

Date		Signature	
26 Aug 2024			
Date	Contracting Officer Mr. Robert Gill AFLCMC/HBUK (781) 225-0193	Signature	GILL.ROBERT.PAUL.1 406668394
26 Aug 2024			Digitally signed by GILL.ROBERT.PAUL.1406668394 Date: 2024.08.26 12:50:05 -04'00'

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Date		Signature
18 Aug 2024		
Date		Signature
26 Aug 2024		
Date		Signature
03 Sep 2024		
Date		Signature
03 Sep 2024		
Date		Signature
Date		Signature
Date		Signature

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Instructions for Completing the Template IAW FAR 16.505(b)(2)(ii)(B)

- (2) State whether the action is a new order or a modification to an existing order. Identify the basic multiple award contract number and the order number for the current action. Also identify the type of the order/line items on the order (e.g., Firm Fixed price, Cost Plus Fixed Fee, etc.).
- (3) Specifically describe the supplies/services to be acquired including the price/cost and quantity of each item in the order and the total estimated value of the order. For services, state whether services are performance-based, and if not, provide rationale for not being performance based. State the delivery/performance schedule/period for the items under the order. Explain how the requirement/order fits under the scope of the basic multiple award contracts. (Note: The Contracting Officer must ensure that the order is issued within the period of performance and within the maximum value of the contract).
- (4) Include the appropriate exception from FAR 16.505 (b)(2) and the supporting rationale. FAR 16.505(b)(1)(i) requires the Contracting Officer to provide each awardee under a multiple award contract, a fair opportunity to be considered for each order exceeding \$3,000 unless a statutory exception applies. The specific exception that precludes the fair opportunity process for this acquisition is FAR 16.505(b)(2)(i)() [Insert A, B, C, D, or E]. If a brand name product description is being justified, use this section to explain why the particular brand name, product, or feature is essential to the Government's requirements and why other companies' similar products/services do not meet, or cannot be modified to meet, the agency's needs.

FAR 16.505(b)(2)(i)(A): “The agency need for the supplies or services is so urgent that providing a fair opportunity would result in unacceptable delays”. When using this exception provide a detailed justification with supporting documentation that explains the exact urgency of the requirement and the mission impact if awarded to any other contractor. The user/customer typically provides this supporting information. Recommend attaching supporting documentation to the back of the document. General statements of urgency are not acceptable.

FAR 16.505(b)(2)(i)(B): “Only one awardee is capable of providing the supplies or services required at the level at the level of quality required because the supplies or services ordered are unique or highly specialized”. When using this exception provide a detailed justification, with supporting documentation, as evidence of the “unique or highly specialized” nature of the procurement. The user/customer typically provides this supporting information. Supporting documentation may be attached to the back of the document. General statements are not acceptable.

FAR 16.505(b)(2)(i)(C): “The order must be issued on a sole-source basis in the interest of economy and efficiency as a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order”. When using this exception provide information on the previously competed order under this contract and detail the economies and efficiencies that will be obtained by going sole source for the follow-on order. The user/customer typically provides this supporting information. General statements are not acceptable.

FAR 16.505(b)(2)(i)(D): “It is necessary to place an order to satisfy a minimum guarantee.”

FAR 16.505(b)(2)(i)(E): “For orders exceeding the simplified acquisition threshold, a statute expressly authorizes or requires that the purchase be made from a specified source.”

Discuss the market research that was conducted by the user/technical team/contracting officer among the supplies/services of all awardees that resulted in the conclusion that a fair opportunity exception applied. The narrative in this section should provide a high level of confidence that the requirements of FAR 16.505(b)(1) and DFARS 216.505-70 could not be met. If no market research was conducted, state so and provide the rationale. If any other awardee expressed interest in fulfilling the requirement, but was not considered a potential source, explain why that awardee cannot provide the required supplies/perform the service.

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If the use of a brand name purchase description is being justified, the market research should include an analysis of any industry proposed alternative products or approaches to meeting the requirements. Additionally, the Government's efforts to identify as many potential sources as practicable offering the required brand name item(s) should be addressed.

(5) This paragraph needs to be tailored based on the types of CLINs in the order and the pricing arrangements on the basic multiple award contract. If the contract did not establish the price for the supply or service, the Contracting Officer must establish prices for each order IAW [FAR 15.4](#). The paragraph needs to describe the steps that will ensure that the prices/estimated cost of the order will be fair and reasonable. For example, even if firm-fixed prices were obtained under adequate price competition in the award of the multiple award contract, the Contracting Officer still needs to consider market conditions and other factors that may have changed since contract award and explain the basis in the determination that prices/costs are fair and reasonable prior to award of the order.

(6) Provide any other facts supporting the use of exceptions to the fair opportunity process.

(7) Include a statement of the actions, if any, to be taken to remove or overcome any barriers that led to the exception to fair opportunity before any subsequent acquisition for the supplies or services is made. If no actions are planned, so state and provide reasons.